

Court No. - 21

Case :- WRIT - C No. - 22866 of 2015

Petitioner :- M/S Kamakhya Steels (Pvt.) Ltd.

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Vikram Nath,J.

Hon'ble Raghvendra Kumar,J.

Adjournment has been sought on behalf of Sri Pranjal Mehrotra, learned counsel representing the respondent-PVVNL.

Put up as afresh case on 27.4.2015.

Order Date :- 22.4.2015

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Court No. - 21

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Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And
Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Vikram Nath,J.

Hon'ble Shashi Kant,J.

Counsel for the petitioner is permitted to correct the numbers of the respondents.

Heard learned counsel for the petitioner and Sri Pranjal Mehrotra, learned counsel for the respondent nos. 1 and 2.

Learned counsel appearing for the respondent nos. 1 and 2 may file counter affidavit within a month. Petitioner will have two weeks' thereafter to file rejoinder affidavit.

List this case after expiry of this aforesaid period.

It has been submitted by the petitioner that as indicated in the interim order passed by this Court in Writ Petition No. 20210 of 2012 (interim order dated 25.04.2012) and in Writ Petition No. 36076 of 2013 (interim order dated 16.01.2014), there is already surplus lying deposited with the respondents amounting to Rs. 48 lacs and therefore, the respondents insisting the petitioner for furnishing bank guarantee for the amount of Rs. 20 lacs and odd is unjustified. It has also stated that amount as directed by the Division Bench of this Court vide order dated 16.01.2014 has already been deposited within time.

Prima facie case for interim relief is made out. As an interim measure it is provided that the condition imposed in the communication dated 11th February, 2014 (Annexure -10 to the writ petition) requiring the petitioner to comply with Clause 4.49 of U.P. Electricity Supply Code, 2005 (hereinafter referred to as 'Supply Code') shall not be insisted as pre-condition for providing temporary connection of 11 KV to the petitioner.

Order Date :- 27.4.2015

Monika

Court No. - 34

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Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And
Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra, S.C.

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Sri Deepak Kumar Pandey, Advocate holding brief of Sri Bidhan Chandra Rai, learned counsel for petitioner, states that by efflux of time, this matter has rendered infructuous.

2. Dismissed accordingly.

3. Interim order, if any, stands vacated.

Order Date :- 12.10.2017

S. Thakur